



ASURANSI

ORIGINAL

SCHEDULE

Attaching to and forming part of

FIRE FIRST SURPLUS REINSURANCE TREATY 2024/2025

ITEM

1. BUSINESS AND SCOPE : Fire and Allied Perils and Property/Commercial/Industrial All Risks including Loss of Profit Co-Insurance and/or inward Facultative Acceptance business written in the Reinsured's Fire Property Department and/or Reinsurance Department.
(Article 1)
2. EXCLUSIONS :
(Article 1)
 1. Reinsurance Treaty (Proportional and Non Proportional)
 2. Retrocession business
 3. Pool business
 4. Excess of Loss/First Loss/Layered Basis Insurance and Reinsurance business (other than sugar estate/sugar factory)
 5. Nuclear Energy Risks Exclusion Clause 1994 - NMA 1975a
 6. Growing Trees and any other Plantation Insurance.
 7. Seepage and Pollution Risks (As per Seepage and Pollution Clause NMA 1685)
 8. Offshore Oil & Gas business - Code 2049
 9. Pasar Traditional Risk – Code 2935
 10. Information Technology Hazard Clause (NMA 2912)
 11. Cyber Exclusion Clause NMA 2915
 12. Extra Contractual Obligation Exclusion Clause
 13. War and Civil War Exclusion Clause
 14. Terrorism & Sabotage as defined by the General Insurance Association of Indonesia (AAUI)
 15. Transmission & Distribution Lines Exclusions Clause
 16. Electronic Date Recognition Endorsement – A NMA 2800 11/12/1997
 17. Sanction Limitation and Exclusion Clause.
 18. All type of business not expressly mentioned under the Business and Scope.
 19. Communicable Disease Exclusion Clause (LMA 5394)
 20. Cession based on Limit of Liability basis
 21. Ex-Gratia Claim
3. TERRITORIAL SCOPE : The Republic of Indonesia
(Article 1)
4. 100% TREATY LIMITS : a) **Direct Business**
(Article 2)
3 (three) lines of retention not exceeding IDR 450,000,000,000 but USD 28,125,000 or the equivalent thereof in any other currencies any one risk and graded down subject to the underwriting judgement of the Reinsured and/or the attached Table of Limit.



PT ASURANSI CENTRAL ASIA

BERIZIN DAN DIAWASI OLEH OJK

No. Anggota : B.0028.2002.AAUI

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- b) Indirect Business**
3 (three) lines of retention not exceeding **IDR 45,000,000,000** but **USD 2,812,500** or the equivalent thereof in any other currencies any one risk and graded down subject to the underwriting judgement of the Reinsured and/or the attached Table of Limit, but cession in this respect will be limited only for risk of 1st and/or 2nd class construction.
5. REINSURER'S NAME & SHARE PROPORTION (Article 2) : **PT REASURANSI INDONESIA UTAMA (PERSERO)**
32.50% of 100.00% Treaty Limits
6. OWN RETENTION (Article 2) : **a) Direct Business**
IDR 150,000,000,000 but **USD 9,375,000** or the equivalent thereof in any other currencies any one risk and graded down subject to the underwriting judgement of the Reinsured and/or the attached Table of Limit.
- b) Indirect Business**
IDR 15,000,000,000 but **USD 937,500** or the equivalent thereof in any other currencies any one risk and graded down subject to the underwriting judgement of the Reinsured and/or the attached Table of Limit.
7. BORDEREAUX (Article 5) : Premium, Paid & Outstanding Claim on quarterly basis for administrative purpose only. Any inadvertent error or omission would not relieve the Reinsurer from any liability.
8. ACCOUNTS (Article 6) : Quarterly in Rupiah and/or US Dollar currency on underwriting year basis. Submission of quarterly statements not later than forty-five (45) days after the close of each quarter. Confirmation by the Reinsurer not later than 15 days after the receipt of such statement. Settlements of balance due not later than 15 days after confirmation.
- Separate accounting for Earthquake, Volcanic Eruption & Tsunami Business; RSMD Code 4.1A/2007 & 4.1B/2007; Flood, Windstorm, Tempest, Water Damage Code 4.3A.
- Any Cash Call and Catastrophe Losses shall be provided with detail of DLA/Claim No., Insured Name, Location, Date of Loss, 100% treaty loss amount.
9. REINSURANCE COMMISSION (Article 7) : **32.50% on OGR**

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10. PROFIT COMMISSION (Article 7) : **17.50%**, subject to 10% Management Expenses and 5 years Deficit Clause.
11. PRELIMINARY LOSS ADVICE (Article 8) : Immediately IDR 5,000,000,000 but **USD 312,500** for 100% Treaty.
12. LEADING REINSURER (Article 8) : **PT REASURANSI INDONESIA UTAMA (PERSERO)**
13. CLAIM COOPERATION (Article 8) : IDR 10,000,000,000 but **USD 625,000** for 100% Treaty.
14. CASH LOSS LIMIT (Article 8) : IDR 5,000,000,000 but **USD 312,500** for 100% Treaty.
15. COMMENCEMENT (Article 11) : 1st October, 2024 (ON RUN OFF SYSTEM BASIS)
Policies issued or renewed on risks effective on and/or after 1st October 2024.
16. TERMINATION (Article 11) : 3 (three) calendar months' notice of cancellation to expire on 30th September of any year.
It is understood that Provisional Notice of Cancellation (PNOC) is automatically tendered on 30 June of any year with cancellation date being 30 September 2025 by Reinsured and reinsurer hereon. No Formal documentation will be issued by either party.
17. PORTFOLIO WITHDRAWAL (Article 12) : NIL
18. PORTFOLIO ASSUMPTION (Article 13) : NIL
19. SPECIAL CONDITIONS : a) Cession in respect of Riots, Strikes and Malicious Damages Code 4.1A/2007 & 4.1B/2007 is subject to the following conditions:
a.a. As defined by the General Insurance Association of Indonesia (AAUI).

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- a.b. Maximum "Total aggregate in force" figures shall not exceed **IDR 9,000,000,000,000** but **USD 562,500,000** any one province.
- b) Cession in respect of Earthquake, Volcanic Eruption and Tsunami is subject to the following conditions:
- b.a. As per AAUI earthquake standard policy S.K. No. 005/AAUI/2003 dated 13th January 2003 and its related Endorsement
- b.b. Premium Rate subject to PT. MAIPARK.
- b.c. Event Limit (any one event):
IDR 1,500,000,000,000 but **USD 93,750,000** subject to SR 460 Event Definition.
- c) Cession in respect of Flood is subject to the following conditions:
Event Limit (any one event): **IDR 1,500,000,000,000** but **USD 93,750,000** subject to SR 460 Event Definition
- d) Accumulation Control of:
1. Riots, Strikes Malicious Damages Code 4.1A/2007 & 4.1B/2007 as defined by the General Insurance Association of Indonesia (AAUI) are on province basis
 2. Earthquake, Volcanic Eruption and Tsunami Endorsement Code 4.2 on Cresta Zone basis
 3. Flood for Jadebotabek.

Position as at 31st December, 31st March, 30th June and 30th September in any treaty year shall be reported by the Reinsured to the Reinsurer within 60 (sixty) days thereafter.

Should the Reinsured fail to report the accumulation figure within the above mentioned period, the leader will send 2 (two) reminders. If the Reinsured still fails to submit the Report, the Catastrophe risk cession for that respective quarter will be deemed as NIL.

- e) Cession in respect of Co-insurance business shall be limited based on the Reinsured's co-insurance share, as follows:

Co-insurance share	Total Capacity
≥20%	100%
≥10% but less than 20%	75%
Less than 10%	50%

Maximum Panel : 10 (if more than 10 but not exceeding 15 is subject to leader's approval)

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Each of the above limits is applicable to the limits for the risks concerned as stated in the attached Table of Limits.

The above coinsurance scale shall not be applied if the Reinsured is being the coinsurance leader or for risk / account with sum insured equal or more than USD 200 Mio.

- f) IAR/PAR with sub limit for MB up to 20% of the total limit of the policy can be ceded to the treaty. Above 20% of the total limit of the policy can be ceded subject to leading reinsurer's approval.
- g) The Risks hereunder can be ceded to the treaty subject to prior approval by leading reinsurer
 - Loss of Profit insurance following Riot, Strike, Malicious Damages 4.1 B/2007 as defined by the General Insurance Association of Indonesia (AAUI) for Night Clubs, Dance Halls, Ball-Rooms, Discotheques (Code 2942),
 - Shoes Factories (Code 257)
- h) Special Acceptance of risks, which will otherwise be excluded from the scope of this reinsurance to be agreed by the leading reinsurer on behalf of all reinsurers hereon.
- i) The Reinsurer undertakes to make payment to the Reinsured for any Cash Call claim request within 14 days from approval date.
- j) The Treaty is based on sum insured basis. However, PML basis with min. PML of **70%** is allowed for certain risk occupation as follows:
 - 21 – Stone, Earth
 - 290 – Transport & Traffic
 - 295 – The Caring Services
 - 297 – Private Building
 - 298 – Property of Public Bodies
 - 294 – Hotels & Sports
- k) Cession based on Limit of Liability basis is allowed subject to:
 - TSI exceeding IDR 1,500,000,000,000 with LoL min. 40%.
 - The risk should be categorized as complex risk and supported by the Risk Engineering Survey Report.
 - in case of a multi-location policy, LoL shall be implemented for each location, not as the single combined limit for all locations.

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- l) Business Interruption :
- Sum Insured no more than Sum Insured for Material Damage.
 - Time Excess:
 - Risk Category I : Time Excess min. as per OJK
 - Risk Category II : Time Excess min. 30 days
 - Risk Category III : Time Excess min. 45 days
 - Risk Category IIIa : Time Excess min. 60 days
 - Maximum Indemnity Period : 18 months
- Note : Risk Category as per Table of Limit

m) Maximum policy period : 18 months.

n) 10% Escalation Clause: It is hereby agreed that the treaty limit may be increased by an amount not exceeding 10% of the limit specified in this Treaty Schedule should there occur an increase in sum insured not exceeding this percentage on any one risk ceded hereunder during the currency of this agreement.

o) DEFINITION OF "ANY ONE RISK" (SRA009)

The company shall be sole judge of what constitutes one risk provided, however. That:

- a. A risk shall never be less than all insurable values within exterior walls and under one roof regardless of fire divisions,, the number of policies involved in such risk.
- b. When two or more buildings are situated at the same general location, the Company shall identify on its records at the time of acceptance by the Company, those individual buildings and all insurable values contained therein that are considered to constitute each risks. If such identification is not made, each building and all insurable values contained therein shall be considered to be separate risk.
- c. A risk shall be determined from the standpoint of the predominant peril and such peril shall be noted in the Company's records.

20. INFORMATION

- : a) This reinsurance shall be subject to Indonesian Law and Jurisdiction, seat of Arbitration Indonesia
- b) EPI 2024/2025 : **IDR 120,000,000,000** for 100% Treaty.
- c) ROE 2024/2025 : USD 1 = **IDR 16,000**
- d) Loss Notification not later than 6 months from the Date of Loss

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and Preliminary Loss Advice to be updated maximum 60 days starting from Loss Adjuster Report released.

- f) Arbitration in original policy: "Lembaga Alternatif Penyelesaian Sengketa Sektor Jasa Keuangan" (LAPS SJK)

21. TAXES : Subject to Government Tax Regulation Law No. 10 of 1994.

In witness whereof this Schedule has been signed in duplicate on behalf of and by the authority of each contracting party.

At Jakarta, this ^{1st}..... day of *October* 2024

For and on behalf of **PT ASURANSI CENTRAL ASIA** (Reinsured) *[Signature]*

[Signature]

At, this day of 20

For and on behalf of **PT REASURANSI INDONESIA UTAMA (PERSERO)** (Reinsurer) *[Signature]*



TABLE OF LIMIT
FIRE QUOTA SHARE & FIRST SURPLUS TREATY 2024/2025
PT ASURANSI CENTRAL ASIA

CATEGORY	RISK EXPOSURE	CONSTRUCTION CLASS		
		I	II	III
		MAX (%)	MAX (%)	MAX (%)
I	LOW 21 – Stone, Earth 290 – Transport & Traffic 295 – The Caring Services 297 – Private Buildings 298 – Property of Public Bodies	100	85	70
II	MEDIUM 20 – Mining, Drilling Installation, Salt Mines, Etc. 22 – Metals 27 – Nutritionals, Drinks and Tobacco 28 – Power & Heating 291 – Construction Firms 292 – Mass Communication 294 – Sports, Hotel & Entertainment Services 299 – Special Covers for Buildings	80	65	50
III	HIGH 23 – Chemical/Oil/Gas 25 – Leather, Rubber, Paper 293 – Trading & Storage 296 – Motor Vehicle Repair Shops	60	45	30
III a	2341- Manufacture of Plastic 24 – Textiles 251 – Paper, cardboard and hardboard factories 26 – Wood, Bamboo & Rattan	50	37.5	25

The above percentage limits applies only to the cession of direct business, and for coinsurance business please refer to the placing slip under Special Conditions.



Ref. No. 01.S1-2025-FR.2024/2025

ORIGINAL

FIRE SURPLUS REINSURANCE AGREEMENT 2024/2025

between

PT. ASURANSI CENTRAL ASIA
(hereinafter called the "REINSURED")
of the one part

and

PT REASURANSI INDONESIA UTAMA (PERSERO)
(hereinafter called the "REINSURER")
of the other part,

Whereby it is agreed as follows:

ARTICLE 1 (Business And Scope)

This Agreement shall apply to all insurances and/or reinsurances accepted or renewed by the Reinsured as defined in the Schedule attaching to and forming an integral part of this Agreement, subject, however, to the exclusion stated in the said Schedule.

ARTICLE 2 (Share And Retention)

The REINSURED shall cede and the REINSURER shall accept by way of reinsurance the proportion stated in the Schedule (hereinafter called the REINSURER's proportion) of those insurances and/or reinsurances stated in the Schedule.

The REINSURED shall, however, be entitled in cases where it deems it advisable and before interesting the REINSURER under this agreement, to reinsure facultatively either a part or whole of any risk; provided, however, that said rights shall be used only when it appears to be beneficial to the REINSURER.



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The REINSURED shall decide what constitutes one risk hereunder and unless otherwise hereinafter provided shall fix its retention in accordance with the Table of Limits attached hereto.

The Table of Limits shall not be altered without the prior consent of the REINSURER.

ARTICLE 3
(Original Conditions)

All cessions under this Agreement shall be subject to the same premiums, values, periods, terms, clauses, conditions, warranties, additional premium and return premiums as the original policies.

ARTICLE 4
(Maintenance Of Record)

The REINSURED shall maintain a record of all cessions hereunder and of all renewals as well as alterations thereto.

ARTICLE 5
(Bordereaux)

All cessions and claims hereunder shall be advised periodically to the REINSURER on premium and claims bordereaux forms as stated in the Schedule.

ARTICLE 6
(Accounts)

Accounts in a currency or currencies stated in the Schedule shall be submitted quarterly by the REINSURED to the REINSURER after the close of each quarter which shall be deemed to close on the 31st December, 31st March, 30th June, and 30th September respectively of each year.

Submission of quarterly statements shall be made as soon as possible but not later than thirty days after the close of each quarter. Confirmation by the REINSURER shall be made as soon as possible but not later than fifteen days after the receipt of such statements, and settlements of balance due shall be made as soon as possible but not later than fifteen days after confirmation.

Inadvertent errors and/or omissions in the quarterly accounts shall not delay the payment of any balance due hereunder unless such errors and/or omissions have a major effect on the remittable balance. Any necessary correction shall be made in a supplementary account to the related quarter which shall be submitted at the same time as the next quarterly accounts rendered hereunder (except in those cases where the error and/or omission has a major effect on the remittable balance necessitating an immediate adjustment).

ARTICLE 7**(Premium, Commission And Profit Commission)**

- 7.1. The REINSURED shall pay to the REINSURER the REINSURER's proportion of the original premium as defined in the Schedule due to the REINSURER in respect of all risks ceded hereto. The REINSURER shall allow commission as stated in the Schedule, but unless otherwise provided no other deduction will be made.
- 7.2. The REINSURER shall further allow the REINSURED a sum equal to the percentage as stated in the Schedule of the profits derived by the REINSURER from the business ceded under this Agreement.

The annual net profit shall be shown in a yearly profit commission statement drawn up by the REINSURED at the end of each treaty year in respect of each individual treaty year. Such statement shall be drawn up as follows:

Income

- (a) Original premiums, including additional premium less returns of premiums.
- (b) Premium Portfolio or Technical Reserve, brought forward from the preceding year, if any
- (c) Loss Portfolio or Reserve for Outstanding Losses, brought forward from the preceding year, if any

Outgo

- (a) Commission as defined in the Schedule.
- (b) Claims and expenses paid less salvage and refunds recovered.
- (c) Premium Portfolio or Technical Reserve for the unearned premium of the current year as defined in the Schedule.
- (d) Loss Portfolio or Estimated Liability in respect of losses attaching to the treaty year and outstanding at the time of the rendering of the Profit Commission Statement.
- (e) The percentage of Original Premium as stated in the Schedule in respect of Management Expenses of the REINSURER.
- (f) Debit Balance, if any, from the previous year.

The excess, if any, of INCOME over OUTGO shall represent REINSURER's net profit on which the aforesaid commission shall be calculated.

- 7.2.1. Profit Commission Statements shall be rendered separately for each treaty year. The first Profit Commission Statement shall be prepared reflecting the position twenty-four months after the commencing of the treaty year in question. The Profit Commission shall be adjusted annually thereafter as may be necessary by supplementary items of INCOME and/or OUTGO and until all liability on policies having inception dates within the treaty year in question shall be finally concluded.
- 7.2.2. In case the related accounts are in more than one currency for the purpose of the Profit Commission Statement all of those currencies shall be converted into

Rupiah Currency based on the Bank of Indonesia's selling rate of exchange prevailing at the end of the quarter (s) to which the accounts are referred.

- 7.2.3. In the event of any Profit Commission Statement showing a debit to REINSURER on the results of any one treaty year by reason of the OUTGO exceeding the INCOME, the total of such debit shall be set against the result of the ensuing treaty year or years as the case may be and no profit commission shall become payable to the REINSURED in respect of such ensuing treaty year or years unless and until the previous debit has been extinguished and a net profit again restored. However, no debit shall be carried forward for a longer period than that stated in the Schedule.

ARTICLE 8
(Losses And Recoveries)

All losses on cession under this agreement shall be incorporated in the quarterly accounts rendered by the REINSURED.

The REINSURED upon knowledge of any loss or losses which may give rise to a claim under this agreement attaining to or exceeding the amount as specified in the Schedule, shall advise the REINSURER thereof immediately but not later than 30 days. The REINSURED must submit the Loss Notification to the REINSURER not later than 6 months from the date of loss, otherwise the REINSURER will have no liability of such losses.

The REINSURED shall cooperate, which include the appointment of Loss Adjuster, Solicitor, Surveyor and Lawyer, with the LEADING REINSURER as stated in the Schedule in the adjustment and settlement of loss or losses which may give rise to a claim under this agreement attaining to or exceeding the amount as specified in the Schedule and shall furnish the REINSURER with all available information and complete supporting documents in respect of such loss or losses. In the event that the REINSURED failed to comply with the respective requirements, it may affect to the REINSURER's Liability of the losses.

Nevertheless, the REINSURER may consider any request for cash loss payment for a claim by any one loss under this agreement equal to or exceeds the amount stated for cash loss payment in the Schedule and the REINSURER shall remit its proportion of such loss as soon as possible after having confirmed its agreement thereto.

The REINSURER shall however be entitled to set off against such amount any liquid balance in its favour under this agreement and/or any other Reinsurance Agreement between the parties hereto.

The REINSURED shall, within one month after the close of each calender year, furnish the REINSURER with a statement of outstanding losses under this agreement as at 30th September of each year such statement to show the amount for which the REINSURER may be liable in respect of each individual claim.

The REINSURER shall be liable for its proportion of all expenses (excluding employees' salaries and office expenses of the REINSURED) incurred by the REINSURED in connection with the settlement of

loss or losses, and shall participate in any sums which may be received by the REINSURED whether by salvage or otherwise.

It is hereby understood and agreed, that prior consent of the LEADING REINSURER shall first be obtained in respect of any ex-gratia and/or compromised settlements of claims.

ARTICLE 9
(Errors And Omissions)

Any clerical error and omission shall not in any circumstances affect the rights or liabilities of either party hereunder, provided that such error and omission shall be corrected immediately upon discovery.

ARTICLE 10
(Rights To Inspection)

The REINSURER may, at any time during normal office hours and at any place where they shall be kept, inspect the REINSURED'S records, books, accounts, and any documents relating to business covered under this treaty, but where arbitration or legal proceedings are pending between the parties hereto this right of inspection shall only be exercised through a representative who is not an employee of the REINSURER.

The REINSURER shall advise the REINSURED of his intention to exercise his rights of inspection at least forty-eight hours in advance.

The REINSURER'S right of inspection shall exist as long as one of the parties hereto has a claim against the other party originating from business arising under this treaty, even after its termination or invalidation.

Upon request the REINSURED shall supply the REINSURER, at the REINSURER'S expense, with copies of the whole or any part of the REINSURED'S records, books, accounts and any documents relating to business ceded under this treaty.

ARTICLE 11
(Commencement And Termination)

- 11.1. This agreement is concluded for an unlimited period and shall take effect in respect of policies issued or renewed on risks covered on or after the date as stated in the Schedule and shall be terminated on the basis set out in the Schedule. In the event of either party giving notice of termination in accordance with the provisions set out in the Schedule then such notice shall be automatically deemed to have been given by both parties. During the period of notice the REINSURER shall continue to participate in all cession covered by the terms of this agreement.

- 11.2. The REINSURER shall (unless specifically agreed otherwise) remain liable for its share of all cessions hereunder in force on the effective date of termination until their next annual renewal date or natural expiry.
- 11.3. Either party shall have the right to terminate this agreement forthwith by giving the other party written notice by the quickest means available which shall be deemed to be served upon despatch or where communications between the parties are interrupted upon attempted despatch where:
- a) the performance of the whole or any part of this agreement be prohibited or rendered impossible de jure or de facto particular and without prejudice to the generality of the preceding words in consequence of any law or regulation which is or shall be in force in any country or territory or if any law or regulation shall prevent directly or indirectly the remittance of any or all or any part of the balance of payments due to or from either party.
 - b) the other party has become insolvent or unable to pay its debts or has lost the whole or any part of its paid up capital or has had its authority to transact any class of insurance withdrawn suspended or made conditional.
 - c) there is any material change in the management or control of the other party.
 - d) the country or territory in which the other party resides or has its head office or is incorporated shall be involved in armed hostilities with any other country whether war be declared or not or is partly or wholly occupied by another power or be in a state of civil war.
 - e) the other party shall have failed to comply with any of the terms and conditions of this agreement.

Notwithstanding provided herein to the contrary all cessions in force and losses outstanding on the date of such termination shall be withdrawn in the manner set forth in Article 12 of this Agreement.

ARTICLE 12 (Portfolio Withdrawal)

In the event of this agreement being terminated for any reason whatsoever the liability of the REINSURER in respect of cessions current as at the termination date shall continue in full force until the normal expiry or renewal dates of such cessions.

Alternatively, the REINSURED shall have the option of withdrawing the portfolio of cessions in force at the date of termination by debiting the REINSURER with its proportion of unearned premiums calculated on the basis as set out in the Schedule of the premiums credited to the REINSURER during the preceding twelve months. Such amount shall be considered as being equal to the unexpired portion of the premiums, and the REINSURER shall be relieved forthwith of any liability relating to losses occurring after the date of termination of this agreement.

The REINSURED shall also have the option to debit the REINSURER with its proportion at the percentage of the losses outstanding as stated in the Schedule as at the date of termination as estimated by the REINSURED, thereby relieving the REINSURER of all further liability hereunder. The REINSURED shall, however, effect further adjustment or adjustments at later dates should the amount of Portfolio Loss Withdrawn varies less or more than 10 (ten) percent of the actual payment of such loss.

ARTICLE 13
(Portfolio Assumption)

If required by the REINSURED, the REINSURER agrees for its proportion to assume the unexpired liability as at the inception date of this agreement of all previous cessions to the treaty of which this agreement forms a part. As consideration the REINSURED will pay to the REINSURER its proportion of the unearned premiums calculated on the basis as stated in the Schedule of the premiums ceded during the preceding twelve months.

If required by the REINSURED, the REINSURER further agrees to assume its proportionate share of liability for all outstanding losses as at the inception date of this agreement including any losses which occurred prior to the inception date of this agreement but which for any cause whatsoever was not advised to the REINSURED until after the inception date of this agreement in consideration of which the REINSURED shall credit the REINSURER with its proportionate share at the percentage as stated in the Schedule of the estimated outstanding losses as at the inception date of this agreement. The REINSURED shall, however, effect further adjustment or adjustments at later dates should the amount of Portfolio Loss Assumption varies less or more than 10 (ten) percent of the actual payment of such loss.

ARTICLE 14
(Arbitration)

All matters in difference between the parties in relation to the contract to which this Agreement is attached, including formation and validity, and whether arising during or after the period of that contract, shall be referred to an arbitration tribunal in the manner hereinafter set out.

Unless the parties agree upon a single arbitrator within thirty days of one receiving a written request from the other for arbitration, the claimant (the party requesting arbitration) shall appoint his arbitrator and give written notice thereof to the respondent. Within thirty days of receiving such notice the respondent shall appoint his arbitrator and give written notice thereof to the claimant, failing which the claimant may apply to the appointer hereinafter named to nominate an arbitrator on behalf of the respondent.

Before they enter upon a reference the two arbitrators shall appoint a third arbitrator. Should they fail to appoint such a third arbitrator within thirty days of appointment of the respondent's arbitrator then either of them or either of the parties may apply to the appointer for the appointment of the

third arbitrator. The three arbitrators shall decide by majority. If no majority can be reached the verdict of the third arbitrator shall prevail. He shall also act as Chairman of the Tribunal.

Unless the parties otherwise agree the arbitration tribunal shall consist of persons with not less than ten years' experience of insurance or reinsurance and currently employed or engaged in a senior position in the insurance or reinsurance industry.

The arbitration tribunal shall have power to fix all procedural rules for the holding of the arbitration including discretionary power to make orders as to any matters which it may consider proper in the circumstances of the case with regard to pledging, discovery, inspection of the documents, examination of witnesses and any other matter whatsoever relating to the conduct of the arbitration and may receive and act upon such evidence whether oral or written strictly admissible or not as it shall in its discretion think fit.

The appointer shall be the Chairman for the time being of the General Insurance Association of Indonesia (Asosiasi Asuransi Umum Indonesia), or if he is unavailable, or it is inappropriate for him to act for any reason, such person as may be nominated by the Executive Committee of the General Insurance Association of Indonesia (Asosiasi Asuransi Umum Indonesia).

All costs of the arbitration shall be at the discretion of the arbitration tribunal who may direct to and by whom and in what manner they shall be paid.

The seat of the arbitration shall be in Jakarta and the arbitration tribunal shall apply the laws of Indonesia as the proper law of this Agreement and of the contract to which this Agreement is attached.

The award of the arbitration tribunal shall be in writing and binding upon the parties who covenant to carry out the same. If either of the parties should fail to carry out any award the other may apply for its enforcement to a court of competent jurisdiction in any territory in which the party in default is domiciled or has assets or carries on business

ARTICLE 15 (Alterations)

Any mutually agreed modifications of the terms and conditions of this agreement, whether by addendum, correspondence or otherwise, shall be deemed to be binding upon the parties hereto and form an integral part of this agreement.

ARTICLE 16 (The Schedule And Signing)

The Schedule attaching to and forming a part of this agreement is made in duplicate and signed by both parties as approval of this agreement.

A new Schedule(s) shall be issued on every anniversary date. Such Schedule shall replace the previous year's Schedule which shall be deemed cancelled. Change of REINSURER's share and any other changes agreed shall be set forth in such Schedule(s). In the event no new Schedule is issued because of termination in accordance with Article 11, this agreement shall be deemed cancelled.

This Agreement has been drawn up and signed in duplicate
in Jakarta, this 1st day of October 2024

For and on behalf of the REINSURED,
PT. ASURANSI CENTRAL ASIA ✕

✕ PT. ASURANSI CENTRAL ASIA

and for the REINSURER and their share(s) as stated in the attached Schedule.
PT REASURANSI INDONESIA UTAMA (PERSERO) ✕

Indonesiare

AMENDMENT NO.1
ATTACHING TO AND FORMING PART OF
SCHEDULE FIRE FIRST SURPLUS REINSURANCE TREATY 2024/2025

It is hereby noted and agreed that with effective from the commencement date (1st October 2024), the following amendment is made to the Schedule:

Existing:

19. SPECIAL CONDITIONS:

- k) Cession based on Limit of Liability basis is allowed subject to :
 - In case of a multi-location policy, LoL shall be implemented for each location, not as the single combined limit for all locations.
- l) Business Interruption :
 - Maximum Indemnity Period : 18 months

Note : Risk Category as per Table of Limit

To become:

19. SPECIAL CONDITIONS:

- k) Cession based on Limit of Liability basis is allowed subject to :
 - In case of a multi-location policy, LoL of each location shall not be more than the Sum Insured of each location.
- l) Business Interruption :
 - Maximum Indemnity Period : 18 months except Office Building, Apartment, and Hotel (OBAH) can be up to 24 months.

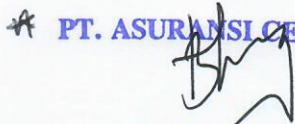
Note : Risk Category as per Table of Limit

All other terms and conditions remain unchanged.

In the witness whereof this Amendment has been signed in duplicate on behalf of and by the authority of each contracting party.

at Jakarta, this 18th day of November 2024

For and on behalf of **PT ASURANSI CENTRAL ASIA** (Reinsured) 

 **PT. ASURANSI CENTRAL ASIA**

at, this day of 20

For and on behalf of **PT REASURANSI INDONESIA UTAMA (PERSERO)** (Reinsurer) 



PT ASURANSI CENTRAL ASIA

BERIZIN DAN DIAWASI OLEH OJK

No. Anggota : B.0028.2002.AAU

e-mail : cust-aca@aca.co.id homepage : www.aca.co.id hotline 24 jam : (021) 31999100



AMENDMENT NO.1
ATTACHING TO AND FORMING PART OF
WORDING**FIRE SURPLUS REINSURANCE AGREEMENT 2024/2025**

It is hereby noted and agreed that with effective from inception date (1st October 2024), the wording's Article 14 (Arbitration) is amended as follows:

ARTICLE 14
(Arbitration)

All matters in difference between the parties in relation to the contract to which this Agreement is attached, including formation and validity, and whether arising during or after the period of that contract, shall be referred to an arbitration tribunal in the manner hereinafter set out.

Unless the parties agree upon a single arbitrator within thirty days of one receiving a written request from the other for arbitration, the claimant (the party requesting arbitration) shall appoint his arbitrator and give written notice thereof to the respondent. Within thirty days of receiving such notice the respondent shall appoint his arbitrator and give written notice thereof to the claimant, failing which the claimant may apply to the appointer hereinafter named to nominate an arbitrator on behalf of the respondent.

Before they enter upon a reference the two arbitrators shall appoint a third arbitrator. Should they fail to appoint such a third arbitrator within thirty days of appointment of the respondent's arbitrator then either of them or either of the parties may apply to the appointer for the appointment of the third arbitrator. The three arbitrators shall decide by majority. If no majority can be reached the verdict of the third arbitrator shall prevail. He shall also act as Chairman of the Tribunal.

Unless the parties otherwise agree the arbitration tribunal shall consist of persons with not less than ten years' experience of insurance or reinsurance and currently employed or engaged in a senior position in the insurance or reinsurance industry.

The arbitration tribunal shall have power to fix all procedural rules for the holding of the arbitration including discretionary power to make orders as to any matters which it may consider proper in the circumstances of the case with regard to pledging, discovery, inspection of the documents, examination of witnesses and any other matter whatsoever relating to the conduct of the arbitration and may receive and act upon such evidence whether oral or written strictly admissible or not as it shall in its discretion think fit.

The appointer shall be the Chairman for the time being of the General Insurance Association of Indonesia (Asosiasi Asuransi Umum Indonesia), or if he is unavailable, or it is inappropriate for him

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AMENDMENT NO.1
ATTACHING TO AND FORMING PART OF
WORDING
FIRE SURPLUS REINSURANCE AGREEMENT 2024/2025

to act for any reason, such person as may be nominated by the Executive Committee of the General Insurance Association of Indonesia (Asosiasi Asuransi Umum Indonesia).

All costs of the arbitration shall be at the discretion of the arbitration tribunal who may direct to and by whom and in what manner they shall be paid.

The seat of the arbitration shall be in Jakarta and the arbitration tribunal shall apply the laws of Indonesia as the proper law of this Agreement and of the contract to which this Agreement is attached.

The award of the arbitration tribunal shall be in writing and binding upon the parties who covenant to carry out the same. If either of the parties should fail to carry out any award the other may apply for its enforcement to a court of competent jurisdiction in any territory in which the party in default is domiciled or has assets or carries on business.

To become:

ARTICLE 14
(Arbitration)

All matters in difference dispute, conflict, or controversy between the parties arising under, out of or in connection with this Contract, including its performance, formation, and validity, and whether arising during or after the period of this Contract, shall be first attempted to be resolved by amicable settlement between the parties within 30 (thirty) calendar days after a Party notifies the other Party of any such Dispute. If such Dispute cannot be settled by amicable settlement within the stipulated timeline, shall be referred to and finally resolved by arbitration administered by Lembaga Alternatif Penyelesaian Sengketa Sektor Jasa Keuangan ("LAPS SJK") in accordance with the Arbitration Rules of LAPS SJK for the time being in force, which rules are deemed to be incorporated by reference in this clause.

The Tribunal shall consist of 3 (three) arbitrators. Within 10 (ten) days of receiving a written confirmation of arbitration registration, the claimant and the respondent shall appoint its arbitrator and give written notice thereof to the other party. If until the expiration of the period there has been no appointment, the claimant or the respondent may apply to the appointor hereinafter named to nominate an arbitrator on behalf of the respondent or the claimant.

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AMENDMENT NO.1
ATTACHING TO AND FORMING PART OF
WORDING
FIRE SURPLUS REINSURANCE AGREEMENT 2024/2025

Before they enter upon a reference the two arbitrators shall appoint a third arbitrator. Should they fail to appoint such a third arbitrator within 10 (ten) days of the appointment of the claimant's and the respondent's arbitrator then either of them or either of the parties may apply to the appointor for the appointment of the third arbitrator. The three arbitrators shall decide by majority. If no majority can be reached the verdict of the third arbitrator shall prevail. He shall also act as chairman of the tribunal.

Unless the parties otherwise agree the arbitration tribunal shall consist of persons (including those who have retired) with no less than ten years' experience of insurance or reinsurance as persons engaged in the industry itself or as lawyers or other professional advisers.

The arbitration tribunal shall, so far as permissible under LAPS SJK's Rules, the law and practice of the seat of arbitration have power to fix all procedural rules for the holding of the arbitration including discretionary power to make orders as to any matters which it may consider proper in the circumstances of the case with regard to pleadings, discovery, inspection of the documents, examination of witnesses and any other matter whatsoever relating to the conduct of the arbitration and may receive and act upon such evidence whether oral or written strictly admissible or not as it shall in its discretion think fit.

The appointor shall be the Management of LAPS SJK.

All costs of the arbitration shall be determined by LAPS SJK's Rules.

The seat of the arbitration shall be Indonesia and the arbitration tribunal shall apply Indonesian Law as the proper law of this arbitration agreement and of the above Contract. The venue of arbitration shall be in Jakarta, Indonesia.

The award of the arbitration tribunal shall be in writing and binding upon the parties who covenant to carry out the same. If either of the parties shall fail to carry out any award the other may apply for its enforcement to a court of competent jurisdiction in the territory in which the party in default is domiciled or has assets or carries on business.

All other Terms and Conditions remain unchanged.

In the witness whereof this Amendment has been signed in duplicate on behalf of and by the authority of each contracting party.

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AMENDMENT NO.1
ATTACHING TO AND FORMING PART OF
WORDING
FIRE SURPLUS REINSURANCE AGREEMENT 2024/2025

at Jakarta, this 27th day of December 2024

For and on behalf of **PT ASURANSI CENTRAL ASIA** (Reinsured) *t*

** PT. ASURANSI CENTRAL ASIA*

at, this day of 20

✕ For and on behalf of **PT REASURANSI INDONESIA UTAMA (PERSERO)** (Reinsurer) *pt*

